

CITATION: MacGarvie v. Attorney General of Canada, 2025 ONSC 3707
COURT FILE NO.: CV-22-00000250-0000
DATE: 20250620

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

Bradley MacGarvie

Plaintiff

- and -

Attorney General of Canada

Defendant

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) Jessica Mor and Jeffrey Kemp, for
) the Plaintiff
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) Emily Keilty and Jennifer Bond, for
) the Defendant
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) **HEARD:** April 14 – 16, 2025

HURLEY, J.

- [1] The plaintiff Bradley MacGarvie is an inmate at Bath Institution. He slipped and fell leaving a building at the prison on December 9, 2020.
- [2] The parties agreed on damages. Liability remains in issue.
- [3] There is no dispute that Mr. MacGarvie fell. The defendant admits that it owed a duty of care to him as an occupier of the premises under the *Occupier's Liability Act*, R.S.O 1990, c.O.2 (the "OLA") and because of the *Corrections and Conditional Release Act*, S.C. 1992, c.20 (the "CCRA").

- [4] The defendant denies that it breached the duty of care and submits that the action should be dismissed. In alternative, if there was a breach, I should find that Mr. MacGarvie was contributorily negligent.
- [5] Six witnesses testified at trial – Mr. MacGarvie and another inmate, Jeremy Gough, and four on behalf of the defendant – Norm Skelhorn, Mike Ross, Colin Crossman and Stephanie Bowen. The parties also filed a comprehensive Agreed Statement of Facts (the “ASF”) and a joint document brief.

The Issues

- [6] The two legal issues are whether there was a breach of the duty of care in the circumstances and, if so, was the plaintiff contributorily negligent.
- [7] To decide these legal issues, I must address the following questions:
1. What was the condition of the area where the plaintiff fell?
 2. What was the cause of the plaintiff’s fall?
 3. Did the defendant have a reasonable system of inspection and maintenance on the date of the fall (i.e. did it have a reasonable system in place to ensure that users of the property would be reasonably safe from falling due to the weather conditions)?
 4. Was the defendant’s system of inspection and maintenance followed on the date of the plaintiff’s fall?

5. Did the plaintiff fail to take reasonable care for his own safety?

Background

[8] I reproduce here the ASF:

1. The Plaintiff, Bradley MacGarvie, was born on April 20, 1989.
2. The Defendant, the Attorney General of Canada ("the Crown"), provides correctional services in accordance with the *CCRA*.
3. Pursuant to the *CCRA*, the Crown is responsible for:
 - a. the care and custody of inmates at federal correctional facilities;
 - b. carrying out the sentences imposed by courts through the safe and humane custody and supervision of offenders;
 - c. establishing, maintaining, and operating federal correctional facilities;
 - d. taking all reasonable steps to ensure that correctional facilities, the penitentiary environment, and the living and working conditions of inmates is safe, healthful and free of all practices that undermine a person's sense of personal dignity; and
 - e. the provision of essential health care and reasonable access to nonessential healthcare.
4. Under the *Crown Liability and Proceedings Act*, R.S.C., 1985, c.C-50, the Crown is liable for the tortious and/or negligent conduct of its servants.
5. The Crown is subject to the provisions of the *OLA*.

6. The Crown owed the Plaintiff a duty of care.

7. In December 2020, and at all material times, the Plaintiff was an inmate at Bath Institution ("Bath").

8. Bath is a medium security federal penitentiary administered by Correction Services Canada ("CSC") located in Bath, Ontario. It is a free egress facility, where inmates can move freely throughout the institution.

9. The Crown is responsible for the maintenance and operation of Bath.

10. At all material times, snow and ice removal was the responsibility of the Facilities Management at Bath.

11. Snow and ice removal was conducted by CSC staff who had this task as part of their work duties, and inmates employed in the inmates' grounds crew ("Grounds Crew").

12. The Procedures for Snow Removal documents that were in effect in December 2020 are attached as Appendix A.

13. As of April 14, 2025, the Plaintiff continues to be an inmate at Bath.

14. The Parties have come to an agreement regarding the quantum of damages, should there be a finding of liability against the Crown in these proceedings.

15. The incident in question in these proceedings occurred on the morning of Wednesday, December 9, 2020.

16. On the morning of December 9, 2020, the weather was cold and snowy.

17. The historical weather data attached at Appendix B are an accurate representation of the weather conditions at Bath from December 7 - 9, 2020.

18. At about 9:25 am, the Plaintiff attended the office of the Correctional Manager ("CM") Norm Skelhorn ("the Office"). The Office is located in a common room building in Upper Unit 3 ("the Common Room Building").

19. There is an outdoor brick-interlock walkway ("Walkway") leading to the Common Room Building.

20. Photographs of the Walkway, taken on February 4, 2025, are attached to this document as Appendix C. These photographs are an accurate depiction of the Walkway, but not of the condition [of the] Walkway with respect to snow and ice, on December 9, 2020.

21. After speaking with CM Skelhorn, the Plaintiff exited the Common Room Building the same way he entered and began to walk on the Walkway.

22. At approximately 9:28am, the Plaintiff slipped on the Walkway. He fell within approximately 1-1.5 feet of the front door of the Common Room Building ("Fall").

23. The Plaintiff landed on his head, neck, shoulder and back.

24. There is a surveillance camera located inside the Common Room Building, facing towards the front entrance. The Fall is partially captured through the window of the Common Room Building on video from this camera.

25. There is an outdoor 360-degree camera with view of the Walkway, however it did not capture the Fall as it was pointed in another direction at that time.

26. A short period of time after the Fall, the Plaintiff reported it to CM Skelhorn and Correctional Officer Mike Ross. The Plaintiff complained of pain in his head, neck and shoulder.

27. CO Ross called Healthcare to assess the Plaintiff. The Plaintiff went back to his living unit to await Healthcare.

28. The Plaintiff was assessed three times at Bath Institution on December 9, 2020. He complained of neck tension, left shoulder pain, right lower back pain, slight dizziness, headache, and a goose egg at the back of his head. He also had bruising at the base of his neck and on his left shoulder.

29. The Plaintiff was diagnosed with a concussion.

30. The Plaintiff was brought to Kingston General Hospital at about 16:30. The Plaintiff was assessed by nurses and doctors there, as well as underwent imaging which did not reveal any acute injuries.

31. The Plaintiff continued to complain of symptoms for weeks after the fall.

32. On January 8, 2021 the Plaintiff was diagnosed with Post-Concussion Syndrome.

33. Though his condition has improved since the fall, the Plaintiff continues to complain of symptoms that he attributes to the Fall.

34. As of December 2020, members of the Grounds crew were not required to keep logs of snow and/or ice removal.

35. There is no documentation detailing the snow and/or ice removal performed by the Ground Crews on December 9, 2020.

The Documentary Evidence

- [9] The parties agreed that the documents in the Joint Brief of Documents were admissible for the truth of their contents. Some of these documents were also appendices to the ASF.
- [10] The weather records indicate that it started to snow at 4 a.m. on December 9, 2020. It snowed in the morning and the afternoon. The temperature hovered around the freezing mark. The total precipitation from 4 to 10 a.m. was 5.3 mm. There was no precipitation on December 7 and 8.
- [11] The written policy with respect to winter maintenance consisted of five documents with the heading “Procedures for Snow Removal”. Before 7:30 a.m. and after 4 p.m., the Correctional Manager was directed to call in staff if there was “any accumulation at all considered dangerous”. During regular hours, inmates performed snow removal inside the prison walls. There was a “Priority List” for ten interior areas. Number four on this list was “Clear all building entrances, walkways and passages”.

- [12] The document also referred to salt/sand boxes located throughout the prison at the entrances to buildings. It stated: “These are provided for everyone’s safety. You are encouraged and expected to use these to mitigate risks associated with icy conditions. Safety is everyone’s responsibility”.
- [13] According to the “Inmate Shop/Dept. Attendance Report”, there were four inmates working on the Grounds Crew on December 9, 2020. The report indicated they worked in the morning and afternoon but did not identify when they started that morning.
- [14] A nurse, Patricia Lafontaine, assessed Mr. MacGarvie at his living unit, known as C house, after his fall. In her first note, which she signed at 10:11 am., she recorded that Mr. MacGarvie was alert and oriented during the examination and able to ambulate independently. He told her that he had fallen outside the Common Room Building on the sloped area of interlocked brick. She observed that he had a “goose egg” on the back of his head and complained of left shoulder pain, right lower back pain and tension in his neck. She advised him to take Tylenol every four hours and notify Healthcare if his condition changed.
- [15] Nurses examined Mr. MacGarvie twice more that afternoon. He went to the Kingston General Hospital in the evening. The attending physician in the emergency department observed hematomas on his neck and head and

ordered CT scans and an x-ray. Her diagnosis was a minor head injury with no loss of consciousness.

- [16] Reproduced below is one of the photographs of the Common Room Building and Walkway included in the ASF. There is a concrete pathway in front of the building which appears to be about a metre in width. The Walkway adjoins the pathway and has a gentle slope downwards. The pathway and Walkway are not perfectly aligned. The pathway is higher by a few centimetres directly across from the entrance door; the height differential gradually reduces along the pathway.



The Testimony

[17] In the following review of the testimony, I will not repeat evidence that is contained in the ASF.

Mr MacGarvie

[18] Mr. MacGarvie arrived at Bath in February 2020. He lived in a house known as C house that was almost directly across the road from the Common Room Building.

- [19] He woke up at around 7:30 a.m. on December 9, 2020. He worked in the kitchen at Bath, collecting the trays used by inmates in the dining area. His shift started between 8 and 8:30 a.m. He walked to the kitchen that morning which required him to go past the Common Room Building. It was snowing out and he believed the temperature was around the freezing mark. There was a modest accumulation of snow, enough to cover the ground. There were icy and slippery spots.
- [20] He was wearing black running shoes issued to him upon his arrival at the prison. He owned another pair of running shoes and sandals, both of which were black. He explained that an inmate is allowed to have personal property up to a certain value which can include shoes and clothing.
- [21] Once he arrived at the kitchen, he put on steel toe work boots. He was permitted to wear these boots only when working in the kitchen. When his shift ended at 9 a.m., he put the running shoes back on. He returned to C house. It was still snowing. The condition of the ground was the same. He was at the house for a short period of time and then walked to the Common Room Building with another inmate, Mike Ormond.
- [22] He wanted to speak to CM Skelhorn. He said that the Walkway was snow-covered with visible icy spots. It had not been shovelled or salted. The interior floor at the entranceway was slippery and wet which he attributed to people tracking in snow.

- [23] He spent less than a minute speaking to CM Skelhorn in his office. He left the office and checked a list which contained appointments for inmates. He then departed the building by the same door, immediately behind Mr. Ormond.
- [24] He was not in a rush to get back to the house. As he stepped onto the Walkway, his feet went out from under him and he fell backwards, striking his head, neck, and shoulders. He saw ice below the snow where he had fallen.
- [25] Mr. Ormond helped him up, put his arm around him, and assisted him in walking back to the house. He reported the fall about 10 minutes later at the suggestion of Mr. Gough. Mr. Ormond helped him walk back to the Common Room Building where he spoke to CO Ross.
- [26] The Walkway was in the same condition. He did not see the Grounds Crew in the area.
- [27] He told CO Ross that he had fallen on ice. CO Ross said that he would contact Healthcare. Mr. MacGarvie walked back to the house, again with Mr. Ormond's assistance. He did not see or speak to CM Skelhorn.
- [28] The video which captured his arrival and departure from the Common Room Building was played during both his examination-in-chief and his cross-examination. He adamantly denied that he was wearing sandals or

footwear like Crocs. He denied that the footwear appeared too big for his feet. I will have more to say about the video later in this decision.

Jeremy Gough

- [29] Mr. Gough is 50 years old. He has been an inmate at Bath since May 2020. About a month or two before the trial, Mr. MacGarvie asked him if he would be a witness on his behalf.
- [30] Mr. Gough lived in C house with Mr. MacGarvie in December 2020. He was sitting at the kitchen table the morning of December 9, eating breakfast at around 9:30 a.m. when he looked out the kitchen window and saw people standing outside the entrance to the Common Room Building.
- [31] Mr. MacGarvie walked into the house and sat at the kitchen table. He said that he felt sick and told Mr. Gough that he had just fallen on ice outside the Common Room Building.
- [32] Mr. Gough left the house and walked over to the Common Room Building because he wanted to know what was going on. There was a guard and several inmates standing at the entranceway. The Walkway was covered by snow. He shovelled and salted it. It took him about 10 to 15 minutes. The guard, whose name he could not recall, watched him do this work. He did not see anyone from the Grounds Crew in the area. After he completed the work, he returned to the house.

- [33] A guard and a nurse arrived at the house. He overheard the nurse telling Mr. MacGarvie to “sleep it off”. Mr. Gough told her that Mr. MacGarvie should not do this and that a person with a head injury needs to be monitored. The nurse asked him where he got his medical degree.
- [34] Mr. Gough started working on the Grounds Crew that week. There were five inmates on the Grounds Crew. They had two supervisors named Tim and Dave. He did not receive any training nor was he aware of any written procedures with respect to winter maintenance. The supervisors told the inmates where to clear the snow. They used shovels and a tractor to clear snow and spread salt. They started at the inmate houses and then cleared the common areas and around buildings.

Norm Skelhorn

- [35] Mr. Skelhorn was a CM at Bath for 22 years. He retired in December 2024. In December 2020, he oversaw day-to-day operations in Unit 3. There were eight houses in Unit 3 with, in total, 147 inmates.
- [36] He would see a “constant traffic” of inmates throughout the day at the Common Room Building. They came to see him and to use other amenities there, including a laundry room, mailbox, and telephones. They also watched TV and played pool there.

- [37] He started work at 7 a.m. on December 9, 2020. It was snowing that morning when he drove into work. The staff parking lot had been cleared of snow.
- [38] Inmates were permitted to leave their houses after 7 a.m. The Grounds Crew could start their work as early as 5 a.m.
- [39] He first observed the Walkway upon his arrival. He was outside the Common Room Building three times before Mr. MacGarvie's fall. He believed that the Walkway had been cleared of snow and salted before he attended a meeting at 8:15 a.m. and remained clear of snow when he returned before 9 a.m.
- [40] He did not have any concerns over the condition of the Walkway. If he had considered it slippery or icy, he would have done something about it because elderly inmates and others with mobility issues and who used assistive devices came to the Common Room Building.
- [41] Mr. MacGarvie and another inmate came to see him in his office the morning of December 9, 2020. After they left, he heard what he described as a "kerfuffle" and went out to see what was going on. Mr. MacGarvie was inside the Common Room Building. He described Mr. MacGarvie as very loud and upset. Mr. MacGarvie told him that he had fallen outside and felt dizzy and in pain. He did not observe any obvious injuries to Mr. MacGarvie. CO Ross told him that he had called Healthcare.

- [42] CM Skelhorn went outside and looked at the Walkway. It was salty and slushy. He did not think it was slippery but acknowledged in cross-examination that it was possible there was ice on the Walkway. He saw the Grounds Crew in the area clearing snow around the houses.
- [43] He did not see Mr. Gough that day.
- [44] He later watched the video surveillance of Mr. MacGarvie's fall at the request of his supervisor to see what kind of footwear he was wearing. Based on this video, he concluded that Mr. MacGarvie was wearing sandals.
- [45] He completed two reports on December 11, one entitled "Inmate Injury Supervisor's Workplace/Approved Program Accident Report" and the other, "Statement/Observation Report".
- [46] In the former report, he wrote that the cause of the accident was "Human error, inclement weather and offenders footing slipped". In the category "Explain Response", he wrote: "A review of the area where I/M MacGarvie stated he fell shows that it had just been shovelled and salted by the Institutional inmate grounds workers and therefore a bit slushy due to a snowfall from the previous night and continuing into the day." In the category "Preventative Action", he wrote: "All preventative measures were in place at the time of this accident. Snow removal of areas ongoing throughout the day."

[47] In the latter report, he wrote: “This writer exited the building and can confirm that the steps and walkways around Upper 3 area had been recently shovelled and salted and the Inmate Grounds crew was still on Upper 3 clearing snow.”

[48] He agreed that he did not specifically refer to Mr. MacGarvie’s footwear in either report.

Mike Ross

[49] CO Ross has worked at Bath for 18 years. In December 2020, he supervised C house. He started work in the Common Room Building on December 9 at 6:45 a.m. When he went on a patrol at 8 a.m. the Walkway had not been shovelled or salted. He went on another patrol shortly before 9 a.m. It was still snowing at the time and the Walkway remained covered by snow. The patrol only took a few minutes, and he was back at the Common Room Building between 9 and 9:15 a.m. The Grounds Crew was shovelling the Walkway but had not yet salted it. He recalled that he had to walk around them.

[50] A short time later, he heard what he described as a commotion, and he left his office to investigate it. He saw Mr. MacGarvie by the entrance door. Mr. MacGarvie was holding his head and told him that he had just fallen on ice. He seemed shook up but did not have any obvious injuries. CO Ross looked at the Walkway and saw ice. He testified: “I recall thinking, yeah I

could have fallen too". He also observed that the Walkway had been salted and he could see slush. He went to his office and called Healthcare. He made a note in his logbook at 9:30 a.m. that Mr. MacGarvie "fell outside on ice."

[51] He said that inmates frequently used the Common Room Building, noting that an inmate could socialize there with inmates who did not live in his house.

[52] He accompanied the nurse to C house when she assessed Mr. MacGarvie. He recorded in the logbook that this happened at 9:40 a.m. but in his testimony said that it could have been later because he called Healthcare after Mr. MacGarvie's fall, and the nurse arrived at the Common Room Building 10 to 15 minutes later.

[53] When asked if he saw Mr. Gough that morning, he did not recognize the name.

[54] He did not work on December 10. He completed a report about Mr. MacGarvie's fall when he returned to work on December 11. He did not discuss the incident with CM Skelhorn before he filled out the report. He recorded the time of Mr. MacGarvie's fall as 9:15 a.m. His report stated:

On the above date and approximate time while working days post in Upper 3 I/M MacGarvie approached this officer stating he fell on ice located just outside the Upper 3 bubble. He was complaining of a

sore head and neck. This officer contacted healthcare. I/M MacGarvie returned to his house. Healthcare arrived approximately 10 minutes later in this officer escorted them to C House to observe I/M MacGarvie within his house. No further incident at that time. Note: Weather was snowing but the grounds workers had shoveled and already salted just prior to accident. Unknown if salt had time to melt ice.

Colin Crossman

[55] Mr. Colman was the Facilities Manager at Bath and Millhaven from September 2022 to August 2024. He testified about the winter maintenance procedures when he worked at these institutions. To his knowledge, they were the same in 2020. The written procedures set out the responsibilities for snow removal. Inmates on the Grounds Crew were trained by staff on how to use the equipment. They were supervised by employees called instructors. He described the various locations within Bath that were identified under the category “Priority List Interior”. The Grounds Crew would start after the 7 a.m. head count but could be called out earlier by a Correctional Manager. He acknowledged in cross-examination that he could not say if the written procedures were followed on December 9, 2020.

[56] Stephanie Bowen was the defendant’s final witness. She is an Assistant Warden and was the defendant’s representative at the examinations for discovery. She worked at Bath in 2004-2006 and again in 2022. She did

not have any direct responsibility for winter maintenance and did not give any material evidence.

The video evidence

[57] The video surveillance which captured Mr. MacGarvie's fall is two minutes and fifty-two seconds in length. It shows Mr. MacGarvie entering the Common Room Building with Mr. Ormond. Mr. MacGarvie is wearing a toque, white shirt and pants and a dark-coloured jacket. The floor around the front door appears wet. Mr. MacGarvie and Mr. Ormond walk to an area that is beyond the camera angle and are then seen again outside CM Skelhorn's office for about 10 seconds. They walk together towards the entrance door. Mr. MacGarvie opens the door and Mr. Ormond walks past him. Within a few steps of leaving the doorway, Mr. MacGarvie falls suddenly to the right, out of view of the camera.

[58] Mr. MacGarvie is wearing either sandals or footwear commonly referred to as sliders that are black in colour and too large for his feet. They could have been Crocs. He is clearly not wearing running shoes.

The Positions of the Parties

[59] Mr. MacGarvie asserts that he fell because of ice on the Walkway. He urges me to reject the evidence of CM Skelhorn about the condition of the Walkway before he fell. CM Skelhorn's testimony cannot be reconciled with

that of CO Ross who was a credible and reliable witness. I should accept his evidence about the condition of the Walkway that morning and, if I do, find that the Walkway was in an unsafe condition and that the defendant failed to take reasonable steps to keep the Walkway safe in the circumstances. Mr. Gough was a credible witness, and his testimony confirmed the unsafe condition of the Walkway. The defendant did not meet its onus of proving that it had a reasonable system of inspection and maintenance in place on December 9, 2020.

[60] With respect to contributory negligence, Mr. MacGarvie emphasizes that the only footwear available to him were the prison-issued running shoes he was wearing that morning which served to increase the risk of falling in winter conditions like those of December 9. The video shows that he was exercising an appropriate level of caution when walking out of the Common Room Building that day.

[61] The defendant submits that it met the standard of care in the circumstances. CM Skelhorn and CO Ross were credible witnesses. They confirmed that the Grounds Crew had shovelled and salted the Walkway before Mr. MacGarvie's fall. There was a policy in place which was, based on their testimony, followed on December 9, 2020. The defendant need only demonstrate that it took reasonable care, and I should not hold it to a standard of perfection. Neither Mr. MacGarvie nor Mr. Gough gave credible evidence and their testimony, which was that nothing had been

done to the Walkway by the Grounds Crew, should be rejected. On the issue of contributory negligence, Mr. MacGarvie failed to exercise reasonable care for his own safety – he knew the ground was snow-covered and slippery in places; that, as a result, he should have exercised more prudence when walking outside which he did not; and he was wearing clearly inappropriate footwear for the conditions. His carelessness should lead me to assess contributory negligence at 50%.

The law

[62] The parties agree on the applicable legal principles. Both rely on the case of *Miller v. Her Majesty the Queen in Right of Canada*, 2015 ONSC 669, which involved a slip and fall at Pittsburgh Institution, which is a medium security prison not far from Bath. Leach, J. summarized them at paras. 12-14 and 19-20:

Pursuant to s.3(b)(ii) of the *Crown Liability and Proceedings Act*, the federal Crown “is liable for the damages for which, if it were a person, it would be liable, [in any province other than Quebec], in respect of ... a breach of duty attaching to the ownership, occupation, possession or control of property is concerned”.

In that regard, it was not disputed that the relevant duties and potential liability of the federal Crown, in the circumstances of this case, therefore are governed in large measure by the *Occupier’s Liability Act*, and authorities which have interpreted and applied that legislation.

General provisions and principles in that regard include the following:

- The OLA generally sets out the duty of care owed by occupiers of premises to persons who come onto those premises, with section 1 of the legislation defining “premises” so as to include “lands and structures, or either of them”, and defining “occupier” so as to include a party “who is in physical possession of premises” or “who has responsibility for and control over the condition of premises or the activities there carried on, or control over persons allowed to enter the premises”.

- Pursuant to section 3(1) of the OLA, an occupier of premises now generally owes “a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises ... are reasonably safe while on the premises”, and where circumstances warrant, that requires positive action on the part of occupiers to make their premises reasonably safe. Of necessity, that statutory duty on occupiers is framed quite generally. The duty to take reasonable care in the circumstances to make the premises safe does not change, but the factors relevant to an assessment of what constitutes reasonable care necessarily will be very specific to each fact situation. They may include, among other things, factors such as the following: weather; the time of year; the size, nature and use of the particular area where a slip and fall occurred; the cost of preventative measures; and the quality of footwear worn by a claimant.

- While the statute creates a positive obligation upon occupiers to ensure that those who come on to their premises are reasonably safe, the overall onus of proof remains on a plaintiff to prove, on a balance of probabilities, that a defendant occupier failed to meet the standard of reasonable care. In particular, the fact of injury does not create a presumption of negligence.

- In fulfilling its statutory duty, it is not incumbent on a defendant occupier to guard against every possible accident that might occur. In discharging its duty to make premises reasonably safe, an occupier is only required to exercise care against dangers that are sufficiently probable to be included in the category of reasonably foreseeable contingencies. Where there is a known danger, (such as ice and snow conditions in Ontario during winter months), the occupier must have a reasonable system in place to ensure that users

of a property will be reasonably safe from slipping and falling due to weather conditions.

- In particular, a defendant occupier may refute any suggested breach of the statutory duty, and/or demonstrate the taking of reasonable care appropriate in the circumstances, by showing that it had a reasonable plan or scheme in place, (for example, to address possible safety concerns and minimize hazards by inspection, maintenance and monitoring), that was being followed at all relevant times. The plan need not be foolproof, or reduced to writing, so long as it is reasonable under all the circumstances. If evidence of compliance with such a plan or scheme at a specific time is lacking, a defendant occupier may establish routine compliance with the scheme or plan, from which the court may infer observance at the time in question. Conversely, a disorganized system involving multiple actors, poor communication, a lack of vigilance to ensure that such concerns are being properly attended to, and/or which allows for inappropriate delays in addressing problems and hazards, may not provide an adequate defence. While the overall onus remains on the plaintiff to prove his or her case, it is not up to the plaintiff to negative such a potential defence. It is up to the defendant to call evidence in support of such a defence.

- The existence of customary practices which are unreasonable in themselves, or which are not otherwise acceptable to the courts, in no way ousts the duty of care owed by occupiers under s.3(1) of the OLA.

The issue [is] not whether the Crown owe[s] a duty of care to prison inmate claimants, but whether the alleged acts and omissions of prison officials fell below the standard of conduct of a reasonable person of ordinary prudence, having regard to all the surrounding circumstances.

- In that regard, prison officials are not guarantors of an inmate's safety, and perfection or infallibility on their part is neither expected nor required. However, reasonable and adequate measures appropriate to the circumstances must be taken to protect the inmate from a reasonably foreseeable risk of injury, and predictable dangers.

[63] He said this about contributory negligence at paras. 26-27:

In assessing the possibility of contributory negligence on the part of plaintiffs who have slipped on snow and/or ice, courts have considered such factors as:

- whether the plaintiff knew or ought to have known of the possibility of ice and potential hazards being formed at the location in question, having regard to winter conditions, precipitation and temperatures;
- whether the prevailing circumstances, (such as lighting or the absence of obstructions or other distractions), would have permitted an ordinary person, paying reasonable attention, to notice the presence of the slippery surface;
- whether the plaintiff failed to keep a proper lookout and exercise proper caution, or had his or her attention focused elsewhere;
- whether the plaintiff was hurrying or otherwise failed to adjust his or her pace and movements to allow for the presence or possibility of slippery surfaces covered with snow or ice;
- whether the plaintiff's balance was impaired owing to the ingestion of medications or alcohol; and
- whether the plaintiff's footwear was suitable for walking on snow and ice.

However, the burden of proving any such contributory negligence, and its causation of the damages for which the defendant might otherwise be wholly responsible, lies on the defendant.

Analysis

[64] As I stated at the outset, there are five questions that I need to address. I answer them as follows:

a. What was the condition of the area where the plaintiff fell?

[65] CO Ross was a credible witness. I accept his evidence that the Grounds Crew started shovelling and salting the Walkway at around 9 a.m. give or take a few minutes. They had completed this work before Mr. MacGarvie fell but insufficient time had passed for some icy spots to melt completely. CO Ross made contemporaneous notes and a detailed report within 48 hours of the incident. He struck me as a diligent and responsible employee without any bias in favour of the defendant or against Mr. MacGarvie. He had a good recall of the events of that morning but was also candid and straightforward about details he was not sure about.

[66] There was some conflict between the evidence of CO Ross and CM Skelhorn. Given the modest snowfall, it is unlikely that the Grounds Crew would have returned to the Walkway to shovel and salt it more than once. They probably only attended the one time when CO Ross observed them. With that said, the testimony of CM Skelhorn and CO Ross was consistent on a key issue: The Walkway had been shovelled and salted before Mr. MacGarvie's fall.

[67] Mr. Gough's testimony was incredible. It defies belief that he would, on his own initiative, go to the Common Room Building and do the work that he knew was assigned to the Grounds Crew. Although salt may have been readily available, he did not explain where he got the shovel that he used

to clear the snow. Based on Mr. Gough's chronology of events, both CM Skelhorn and CO Ross would have seen (and remembered) him redoing work that the Grounds Crew had already completed.

[68] Mr. MacGarvie was, overall, not a credible witness for reasons I will shortly explain. However, as with any witness, I can believe some, all, or none of their testimony. Based on the weather records and the testimony of CO Ross, I accept Mr. MacGarvie's evidence that when he walked to the kitchen and returned to his house that morning, the ground was snow-covered with some slippery or icy patches and when he went to the Common Room Building, there were, to his knowledge, visible slippery or icy spots on the Walkway.

b. What was the cause of the plaintiff's fall?

[69] I find that Mr. MacGarvie likely fell due to some ice on the Walkway. I reach this conclusion, for the most part, because of CO Ross's testimony. Although he did not witness the fall, he examined the area immediately after it and made observations which lead to the reasonable conclusion that Mr. MacGarvie fell as result of ice on the Walkway. It may have partially melted because of the application of the salt but it was still slippery. The video also shows that Mr. MacGarvie fell suddenly to his right shortly after he left the Common Room Building which is consistent with him stepping on ground that was slick in that spot.

c. Did the defendant have a reasonable system of inspection and maintenance on the date of the fall (i.e. did it have a reasonable system in place to ensure that users of the property would be reasonably safe from falling due to the weather conditions)?

[70] The written procedures for snow removal are, on their face, reasonable. They address specific areas throughout the prison and prioritize locations where there would likely be a volume of people, especially when staff arrived to start their workday. It also makes sense that inmate work crews would engage in this type of maintenance task. However, there was a dearth of evidence about the training of the Grounds Crew and the supervision and inspection of the work done by them.

[71] The defendant did not call any of the supervisors that were on duty on December 9, 2020, or the Facilities Manager. CM Skelhorn testified there were elderly inmates and others with mobility issues who came to the Common Room Building. These inmates would not only be at a greater risk of a fall, but the consequences would also likely be more severe for them than younger or able-bodied individuals. The Common Room Building was a popular destination, and inmates could go there from 7 a.m. onwards. There is nothing in the written procedures which indicate that the Walkway received any special attention because of these elevated risks. The Grounds Crew did not get to the Walkway until around 9 a.m.; according to CM Skelhorn, they could have started the snow removal that day as soon as 5 a.m. One of the supervisors or the Facilities Manager

could have given evidence about how the risks associated with the Common Room Building were addressed or why the Grounds Crew did not get there sooner. If such evidence had been presented, I could assess the reasonableness of the defendant's system of inspection and maintenance on December 9, 2020. But it was not, and I find that the defendant did not meet its onus of establishing this defence on the facts of this case.

d. Was the defendant's system of inspection and maintenance followed on the date of the plaintiff's fall?

[72] As I stated earlier, I find that the Grounds Crew shovelled and salted the Walkway at around 9 a.m. so there was compliance with the written procedures in that there was snow removal from a walkway as required by them. But, as I explained above, the defendant did not meet its onus in respect of the reasonableness of the inspection and maintenance system in place on December 9, 2020.

e. Did the plaintiff fail to take reasonable care for his safety?

[73] A recent snowfall together with temperatures around the freezing mark always invite extra caution when walking. There will inevitably be areas, both visible and concealed, that are slippery. With prudence, a person can safely navigate the route to their destination. Mr. MacGarvie knew this; he had walked to and from the kitchen and was aware of the condition of the Walkway before he left the Common Room Building. He was also

familiar with its layout (a downward slope and a step down to this slope) which a reasonable person would know requires even more care when walking on it on a snowy day. He knew there was water on the interior floor which he had walked on, and this, too, should have led him to walk more carefully outside. But, as is evident from the video, he exercised no extra caution. And he was wearing footwear, both in type and size, which was obviously unsuitable for the conditions that morning. It was footwear that would not only result in poor traction but also make it harder to maintain his balance if he slipped. He testified untruthfully about his footwear. He did so, I find, for two reasons: he knew that it was inappropriate footwear for the conditions, and he thought that claiming the footwear was prison-issued running shoes would help his legal claim. I agree with the defendant that I should find there was significant contributory negligence and I assess it at 50%.

Conclusion

[74] For these reasons, I find the defendant liable but reduce the damages by 50% on account of contributory negligence. The parties should make reasonable efforts to resolve the issue of costs. If they cannot reach an agreement, the plaintiff shall deliver written submissions not to exceed five pages exclusive of a costs outline and any settlement offers made in writing within 30 days of the release of this decision. The defendant has 30 days in which to deliver responding submissions of the same length. Counsel

for the plaintiff shall notify my assistant at Sarah.Wheaton@ontario.ca when both sets of submissions have been filed and uploaded to Case Center.

Justice P. Hurley

Released: June 20, 2025

CITATION: MacGarvie v. Attorney General of Canada, 2025 ONSC 3707
COURT FILE NO.: CV-22-00000250-0000
DATE: 20250620

ONTARIO
SUPERIOR COURT OF JUSTICE

BETWEEN:

Bradley MacGarvie, Plaintiff

– and –

Attorney General of Canada, Defendant

Counsel:

Jessica Mor and Jeffrey Kemp, for the Plaintiff

Emily Keilty and Jennifer Bond, for the
Defendant

REASONS FOR JUDGMENT

Hurley, J.

Released: June 20, 2025